**IN THE DISTRICT COURT OF APPEAL**
**OF THE STATE OF FLORIDA**
**SECOND DISTRICT**

**Case No. 2D2011-3925**

FLORIDA WILDLIFE FEDERATION,
*Petitioner,*

v.

DEPARTMENT OF COMMUNITY AFFAIRS;
CEMEX CONSTRUCTION MATERIALS FLORIDA, LLC;
OLD CORKSCREW PLANTATION, LLC;
OLD CORKSCREW PLANTATION V, LLC;
TROYER BROTHERS FLORIDA, INC.;
FFD LAND COMPANY, INC.; LEE COUNTY;
COLLIER COUNTY AUDUBON SOCIETY, INC.;
CONSERVANCY OF SOUTHWEST FLORIDA, INC.;
ESTERO COUNCIL OF COMMUNITY LEADERS, INC., and NICK BATOS,
*Respondents.*

On Petition for Expedited Review of Non-Final Action by Administrative Law Judge, Division of Administrative Hearings, DOAH Case No. 10-2988GM

# PETITION FOR EXPEDITED REVIEW OF NON-FINAL ACTION BY ADMINISTRATIVE LAW JUDGE

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Pursuant to Section 120.68(1), Fla. Stat. and Fla.R.App.P. 9.100(a), Petitioner, Florida Wildlife Federation (FWF) respectfully petitions the Second District Court of Appeal for expedited review of Administrative Law Judge Bram D. E. Canter's (ALJ Canter) July 12, 2011 order (App. 1) and ALJ Canter's August 1, 2011 "Notice to Parties Regarding the Governing Law." (App 2).

Expedited review of these non-final orders in Division of Administrative Hearings (DOAH) Case No. 10-2988GM is necessary because review of the final agency decision after completion of the proceeding below would not provide an adequate remedy.

FWF contends the July 12th order dismissing the Florida Department of Community Affairs (DCA) as a party respondent unconstitutionally applied Chapter 2011-139, Laws of Florida retroactively, thereby denying FWF it's vested rights and procedural rights to have the DCA as a party respondent.[1]

[1]October 1, 2011, the Department of Community Affairs as state land planning agency will transition into a new Department of Economic Opportunity under a separately enacted HB 2156.

FWF contends the August 1st notice that states the new Chapter 2011-139 is the governing law in the pending Section 163.3184(16)(f), Fla. Stat. below is unconstitutional for the multiple reasons set forth below.

## I. ALJ CANTER'S TWO NON-FINAL ORDERS

### A. The July 12th Order

The July 12th order granted the Florida Department of Community Affairs (DCA's) motion to be dismissed as a party from the pending Section 163.3184(16)(f), Fla. Stat. proceeding below that is challenging DCA's December 12, 2010 Cumulative Notice of Intent (NOI) that proposes to find Lee County's comprehensive land use plan amendments in compliance with Chapter 163, Part II, Fla. Stat. (2010). This DCA Cumulative NOI is proposed DCA agency action for which FWF contends it has a vested right to have DCA defend as a respondent in the proceeding below.

The July 12th order further held that after dismissal of DCA the remaining parties in the proceeding below may call DCA employees as witnesses in the proceeding below to explain DCA's action on the plan amendments under Chapter 163, Part II, Fla. Stat. (2010),[2] and that the

[2]DCA Assistant Legal Counsel Lynette Norr has advised the undersigned that DCA will object to DCA staff testifying in person (live) in Ft. Myers at the proceeding below between October 24 and November 4, 2011. Live testimony of Michael McDaniel of DCA is a vested right of FWF in this proceeding. FWF also has a due process right to be able to have in person

"issues, burden of proof, compliance criteria, and any other substantive matter" in the proceeding below will be those set forth in the old law, Chapter 163, Part II, Fla. Stat. (2010).[3]

**B. The August 1st Notice**

The August 1st notice sua sponte declared and ordered that the "issues raised in this case shall be governed by chapter 2011-139" and "the application of the new law is not a retroactive application of the law." (App. 2). This sua sponte order is inconsistent with the July 12th order which held that the "issues, burden of proof, compliance criteria, and any other substantive matter" in the proceeding below will be those set forth in the old law, Chapter 163, Part II, Fla. Stat. (2010).

The August 1st notice imposes all of the procedural and substantive provisions of Chapter 2011-139 into the pending Section 163.3184(16)(f) proceeding below, thereby placing FWF's claims that Chapter 2011-139

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live examination of DCA witnesses regarding DCA's determination of compliance of the Lee County plan amendments and FWF's constitutional issues.

[3]The issues in the proceeding below are those raised by the petitioners, who are: Cemex Construction Materials Florida, LLC; Old Corkscrew Plantation, LLC; Old Corkscrew Plantation V, LLC; Troyer Brothers Florida, Inc.; and FFD Land Company, Inc. The action being challenged by the January 3, 2011 petition for hearing is DCA's December 12, 2010 cumulative NOI (proposed agency action), not the Lee County plan amendment.

was unconstitutionally adopted in violation of the following mandates of the Florida Constitution at issue.

## II. FWF'S REQUESTED RELIEF

### A. FWF's Requested Relief Regarding July 12th Order

The FWF, a Respondent-in-Intervention in the pending proceeding below, respectfully requests the court grant expedited review, and reverse the July 12th order, for each of the following summary of reasons, each of which is more fully discussed in the argument section below.

#### 1. Order Denies FWF'S Vested Rights In Violation FWF's Due Process Rights

On October 27, 2010, FWF, Lee County, and others, entered into a Stipulated Compliance Settlement Agreement in which DCA agreed to issue a Cumulative NOI to find the Lee County plan amendments in compliance with Chapter 163, Part II, Fla. Stat. (2010), with the understanding that other various parties to DOAH Case No. 10-2988GM would challenge DCA's Cumulative NOI and DCA would defend the Cumulative NOI.[4]

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[4]The Stipulated Compliance Settlement Agreement estops DCA from withdrawing from the proceeding below as long as DCA's Cumulative NOI remains DCA's proposed agency action. See, State, Department of Community Affairs v. DOAH, 588 So.2d 272, 274-275 (Fla. 1st DCA 1991) (DOAH has jurisdiction to consider whether a party a party has waived or is estopped from taking a position by compliance settlement agreement. The concurring opinion noted that Section 163.3184(13), Fla. Stat. states that Chapter 163 proceedings are the sole proceeding or action to determine

On November 1, 2010 Lee County adopted the remedial amendments and DCA published it's Cumulative NOI on December 12, 2010.

On January 3, 2011 the non-signing parties to Case No. 10-2988GM filed a Section 163.3184(16)(f) petition challenging DCA's Cumulative NOI. FWF had a vested statutory and contractual right to have DCA defend the Cumulative NOI. Dismissal of DCA unconstitutionally denies FWF of its vested right to have DCA as a party defending DCA's Cumulative NOI in the Section 163.3184(16)(f) proceeding below. See, Art. I, Section 9, Fla. Const.

**2. Unconstitutional Retroactive Application of Chapter 2011-139**

Chapter 2011-139 does not expressly state legislative intent to retroactively apply the procedural and substantive changes of Chapter 2011-139 to pending Section 163.3184(16)(f) proceedings based upon Section 163.3184(16), Fla. Stat. (2010) compliance settlement agreements as is the situation in the proceeding below. DCA's motion to dismiss recognized that Chapter 2011-139 is silent on whether procedural changes in Chapter 2011-139 should be retroactive. (App. 4, pg. 2, para. 2).

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whether plan amendments are in compliance with Chapter 163, Part II, Fla. Stat.).

Section 74 of Chapter 2011-139 requires DCA to review administrative and judicial proceedings filed by DCA and that were pending on the effective date of Chapter 2011-139, and to dismiss such proceedings that involve issues not consistent with the revised provisions of Chapter 163, Part II, Fla. Stat. However, that situation is entirely different and unrelated to Section 163.3184(16(f) proceedings initiated by affected persons, not DCA, to challenge local government adopted plan amendments which DCA Cumulative NOIs. If the legislature had intended retroactive application of Chapter 2011-139 to pending Section 163.31984(16)(f) proceedings, Section 74 of Chapter 2011-139 would have been written to so state. See, Hassen v. State Farm Mutual Automobile Insurance Co., 674 So.2d 106, 109 (Fla. 1996) (Section 627.727(6), Fla. Stat. prohibited from being applied to a claim brought prior to the statute's effective date).

FWF has vested statutory and contractual rights in the Section 163.3184(16) compliance settlement agreement in the proceeding below, and dismissal of DCA based upon the retroactive application of Chapter 2011-139 is a denial of FWF's vested rights without due process in violation of Art. I, Section 9 of the Fla. Const.

**3. DCA is Necessary Party to FWF's Constitutional Claims Below**

In opposition to DCA's motion to be dismissed as a party, the FWF advised the tribunal below that FWF was going to develop a record in the proceeding below of the unconstitutionality of Chapter 2011-139 for appellate review of the application of Chapter 2011-139. (App. 3, pg. 9). Because DCA is the state agency charged with enforcing Chapter 2011-139, DCA is a necessary party to the proceeding below in which Chapter 2011-139 is being implemented and FWF will be challenging the constitutionality of Chapter 2011-139. Atwater v. City of Weston, ___So.3d ___ , 2011-WL 1634234 (Fla. 1st DCA May 2, 2011); Haridoplos v. Alachua County, 1st DCA Case No. 1D10-6433, July 7, 2011.

**B. FWF's Requested Relief Regarding August 1st Notice**

Because the August 1st Notice declares Chapter 2011-139 will be applied across the broad in the proceeding below, the FWF respectfully requests the court grant expedited review and reverse the August 1st Notice order for each of the following summary of reasons, each of which is more fully discussed in the argument section below.

**1. Declare (HB 7207) Chapter 2011-139 to Have Been Adopted In Violation of Art. III, Sections 6 & 7, Fla. Const.**

The August 1st notice should be reversed because HB 7207 (Chapter 2011-139, Laws of Florida) unconstitutionally violates both the single

subject rule of Art. III, Section 6, and the “passage of bills” mandate of Art. III, Section 7, Fla. Const.

HB 7207 was initially passed by the House on April 7, 2011 concerning “trust finds.” The Senate never passed or amended HB 7207 concerning trust funds. Rather, the Senate struck everything but the enabling clause, and no additional language was added to the bill. A legislative proposal consisting of an enabling clause without a title or any text is neither an amendment nor a bill. As a matter of law th Senate action regarding HB 7207 was a rejection of HB 7207 in its entirety in accordance with the mandates of Art III, Section 7, Fla. Stat. for passage of bills.

Additionally, the Senate’s substitution of the Growth Management Act title and text near the close of the Legislative session into the HB 7207 shell addresses more than one subject in violation of the mandate of Art. III, Section 6, Fla. Stat.

**2. Declare Chapter 2011-139 an Unlawful Delegation of Legislative Authority in violation of Art. II, Section 3**

The August 1st Notice puts at issue the constitutionality of Chapter 2011-139, and expedited review of whether Chapter 2011-139 unlawfully delegates legislative authority to DCA to define the unconstitutionally vague phrases: “important state resources and facilities,” “regionally significant resources,” “regionally significant water resources and wildlife corridors,”

and “regional resources and facilities” at the same time Chapter 2011-139 prohibits DCA from adopting rules to implement Chapter 2011-139, an action which makes Chapter 2011-139 almost impossible to implement because existing Section 120.57(1)(e)(1), Fla. Stat. (2011) prohibits agencies and ALJs from basing decisions on unadopted rules.

Expedited review is needed to determine whether Chapter 2011-139 unlawfully delegates vague legislative authority to DCA. Application of Chapter 2011-139 to the proceeding below places the proceeding below in gridlock.

**3. Declare Chapter 2011-139 Unconstitutionally Results In Inadequate Laws To Conserve and Protect Florida’s Natural Resources as required by Art. II, Section 7, of the Fla. Const.**

HB 7207 unconstitutionally delegates vague legislative authority to the DCA concerning: “important state resources and facilities,” “regionally significant resources,” “regionally significant water resources and wildlife corridors,” and “regional resources and facilities,” in violation of Article II, Section 3 of the Fla. Stat. HB 7207 not define these terms, and HB 7207 also prohibits DCA from having the statutory authority to adopt rules to implement these phrases.

In light of the prohibition in Section 120.57(1)(e)(1), Fla. Stat on agencies and ALJs determining substantial interests of parties based upon

unadopted rules, HB 7207 unconstitutionally violates Art. II, Section 7 of the Fla. Const. which mandates that "[a]dequate provision shall be made by law for the abatement of air and water pollution....and for the conservation and protection of natural resources." The absence of the state land planning agency being able to protect and conserve important state natural resources is a failure for there to adequate provision made by law for the conservation and protection of Florida's natural resources.

## III. BASIS OF JURISDICTION

Fla.R.App.P. 9.100(a) provides that original proceedings include proceedings that invoke the jurisdiction of the courts for review of non-final administrative action.

Fla.R.App.P. 9.020(a)(2) defines "Administrative Action" to be non-final action to be an agency or administrative law judge reviewable under the Administrative Procedure Act.

> Section 120.68(1), Fla. Stat. (2010) reads as follows.
> "A party who is adversely affected by final agency action is entitled to judicial review. A preliminary, procedural, or intermediate order of an agency or of an administrative law judge of the Division of Administrative Hearings is immediately reviewable if review of the final agency decision would not provide an adequate remedy."[5]

[5]Art. V, Section 4(b)(2), Fla. Const. provides for legislative grants of jurisdiction to the district courts to review administrative action without

The FWF is an affected person under Section 120.68(1), Fla. Stat. because FWF is a party to the proceeding below that is adversely affected by ALJ Canter's July 12th order and August 1st notice. The order and notice adversely affect FWF's ability to create a record in the proceeding below for FWF's challenge in appellate courts to the constitutionality of Chapter 2011-139. The endangered Florida panther and its habitat in southeast Lee County are "important state resources" for which Chapter 2011-139 does not ensure the conservation and protection of by the unconstitutional delegation of legislative authority to DCA. The subject Lee Plan amendments provide additional land use plan measures to conserve and protect the endangered Florida panther and its habitat in southeast Lee County, and the failure of DCA to participate as a party defending these Lee County plan amendments adversely affects the endangered Florida panther and the FWF.

FWF is also a party to the compliance settlement agreement in the proceeding below, a settlement agreement which resulted in amendments to the Lee Plan to bring the amendments into compliance with Chapter 163, Part II, Fla. Stat. according to DCA's December 12, 2010 Cumulative NOI.

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regard to the finality of the action. See, Committee Notes to Fla.R.App.P. 9.100.

FWF is adversely affected both as a corporation and as a representative of a substantial numbers of FWF's members who use and enjoy portions of southeast Lee County that is subject to the challenge to the Lee County plan amendments at issue in the proceeding below, and by Chapter 2011-139 which unlawfully weakens Florida comprehensive land use planning laws and its protection of Florida's natural resources such as the endangered Florida panther and its habitat.[6]

The FWF operates a business within Lee County and participated in the transmittal and adoption process for the DR/GR amendments by testifying at hearings, providing comments, offering information, and a meeting with Lee County staff. FWF has members that reside in Lee County and are adversely affected by mining and development in southeastern Lee County if the Lee County plan amendments at issue below are found to be not in compliance due to the petitioners challenge.

## IV. THE FACTS

On March 3, 2010, DCA initiated the proceeding below pursuant to Section 163.3184(10), Fla. Stat., based upon DCA's Statement of Intent

[6]As set forth below, Chapter 2011-139 does not define: "important state resources and facilities," "regionally significant resources," "regionally significant water resources and wildlife corridors," and "regional resources and facilities" or "regionally significant natural resources," and constitutes an unconstitutional delegation of legislative authority.

(SOI) and NOI that the comprehensive land use plan amendments adopted by Respondent, Lee County (County) by Ordinance Nos. 10-19, 10-20 and 10-21 were not “in compliance” as that term is defined by Section 163.3184(1)(b), Fla. Stat.

On October 29, 2010, DCA filed in the proceeding below a compliance settlement agreement with remedial amendments the County agreed to adopt. The compliance settlement agreement was pursuant to Section 163.3184(16), Fla. Stat. (2010). The parties to the compliance settlement agreement were DCA, the County, FWF, CCAS, Conservancy of Southwest Florida, Inc., Estero Council of Community Leaders, Inc., Nick Batos, Old Corkscrew Golf Club, LLC (formerly Old Corkscrew Plantation, Inc.) , and Alico Land Development, Inc.

On November 1, 2010, pursuant to the compliance settlement agreement, Lee County adopted the remedial comprehensive plan amendments by Ordinance No. 10-43. Pursuant to Section 163.3184(16)(e), Fla. Stat., DCA reviewed these remedial amendments and issued a Cumulative NOI that found Lee County’s plan amendments, as remedated by the compliance settlement agreement amendments, to be “in compliance” as that term is defined by Section 163.3184(1)(b), Fla. Stat.

(2010).[7]

On December 16, 2010, pursuant to Section 163.3184(16)(f)(1), Fla. Stat., DCA filed it's Cumulative NOI in the proceeding below and requested DCA be aligned as a respondent along with then respondents Lee County, FWF, and CCAS. On December 12, 2010, a DOAH order was entered realigning DCA as a respondent in the proceeding below.

On January 3, 2011, pursuant to Section 163.3184(16)(f), Fla. Stat., Cemex Construction Materials Florida, Inc., Old Corkscrew Plantation, LLC, Corkscrew Plantation V, LLC, and Troyer Brothers Florida, Inc. (Petitioners) filed an amended petition for hearing requesting a Sections 120.569, 120.57, and 163.3184(9), Fla. Stat. administrative hearing which challenges DCA's December 12, 2010 Cumulative NOI to find the County's plan amendments, as remedated, to be "in compliance." The Petitioners amended petition named DCA as a respondent and affected agency, which DCA clearly is in the proceeding below. The amended petition for hearing converted the proceeding below from a Section 163.3184(10) proceeding initiated by DCA to a Section 163.3184(16)(f) proceeding initiated by the

[7]DCA's Cumulative NOI published in the Ft. Myers News Press on December 12, 2010.

Petitioners, with DCA as a respondent due to DCA's Cumulative NOI being DCA's proposed agency action at issue.

On June 2, 2011, over 172 days after DCA issued its December 12, 2010 Cumulative NOI, Chapter 2011-139, Laws of Florida (HB 7207) became effective. Chapter 2011-139 enacted numerous procedural and substantive revisions to Chapter 163, Part II, Fla. Stat., including revising the situations and methods for DCA review of plan amendments such as DCA comments and notices of intent concerning plan amendments that affect the functions of the undefined phrase "important state resources and facilities" (a substantive revision). Chapter 2011-139 also revises the definition of "in compliance" (a substantive revision).

On July 12, 2011, ALJ Canter enter the order which granted DCA's motion to be dismissed as a party to the proceeding below.

On August 1, 2011, ALJ Canter issued a notice that opined the "issues raised in this case shall be governed by chapter 2011-139" and "the application of the new law is not a retroactive application of the law." (App. 2).

Currently the proceeding below is scheduled for a final evidentiary hearing from October 24 to November 4, 2011.

## V. THE ARGUMENT

The court should grant the FWF's request for expedited review of the non-final order of ALJ Canter which have dismissed DCA from the pending proceeding below, and held that Chapter 2011-139 governs all of the pending Section 163.3184(16)(f) proceeding below.

### A. FWF's Requested Relief Regarding July 12th Order

The FWF respectfully requests the court grant expedited review and reverse the July 12th order for each of the following reasons.

#### 1. Order Denies FWF'S Vested Rights In Violation FWF's Due Process Rights

FWF has a vested right based upon the stipulated compliance settlement agreement with DCA and Lee County. Lee County adopted the remedial plan amendments. Pursuant to the compliance settlement agreement, DCA issued a Cumulative NOI on December 12, 2010 regarding the Lee County remedial amendments. This was almost 6 months before Chapter 2011-139 was effective. It is unconstitutional for Chapter 2011-139 to retroactively impair FWF's vested right to have DCA as a party defending DCA's December 12, 2010 Cumulative NOI. R.A.M. of South Florida, Inc. v. WCI Communities, Inc., 869 So.2d 1210, 1216-17 (Fla. 2nd DCA 2004); Hassen v. State Farm Mut. Auto Ins. Co., 674 So.2d 106, 108 (Fla. 1996) ("This court will not divine an intent that a new law be applied to disturb existing contractual rights or duties when there is no

express indication that such is the legislature's intent."); Arrow Air, Inc. v. Walsh, 645 So.2d 422, 425 (Fla. 1994)("the presumption against retroactive application of a law that affects substantial rights, liabilies, or duties is a well[-]established rule of statutory construction."); Yamaha Parts Distrib., Inc. v. Ehrman, 316 So.2d 557 (Fla. 1975)(retroactive application of statute requiring 90 days notice for termination of franchise agreements would unconstitutionally impair obligation of contract if applied to contracts entered before the effective date of statute).

**2. Unconstitutional Retroactive Application of Chapter 2011-139**

Chapter 2011-139 does not expressly state legislative intent to retroactively apply the procedural and substantive changes of Chapter 2011-139 to pending Section 163.3184(16)(f) proceedings based upon Section 163.3184(16), Fla. Stat. (2010) compliance settlement agreements as the proceeding below. DCA's motion to dismiss recognized that Chapter 2011-139 is silent on whether procedural changes in Chapter 2011-139 should be retroactive. (App. 4, pg. 2, para. 2).

Section 74 of Chapter 2011-139 requires DCA to review administrative and judicial proceedings filed by DCA and that were pending on the effective date of Chapter 2011-139, and to dismiss such proceedings that involve issues not consistent with the revised provisions

of Chapter 163, Part II, Fla. Stat. However, that situation is entirely different and unrelated to Section 163.3184(16(f) proceedings initiated by affected persons, not DCA, to challenge local government adopted plan amendments which DCA Cumulative NOIs. If the legislature had intended retroactive application of Chapter 2011-139 to pending Section 163.31984(16)(f) proceedings, Section 74 of Chapter 2011-139 would have been written to so state. See, Hassen v. State Farm Mutual Automobile Insurance Co., 674 So.2d 106, 109 (Fla. 1996) (Section 627.727(6), Fla. Stat. prohibited from being applied to a claim brought prior to the statute's effective date).

FWF has vested statutory and contractual rights in the Section 163.3184(16) compliance settlement agreement in the proceeding below, and dismissal of DCA based upon the retroactive application of Chapter 2011-139 is a denial of FWF's vested rights without due process in violation of Art. I, Section 9 of the Fla. Const.

**3. DCA is Necessary Party to FWF's Constitutional Claims Below**

DCA must be a party to the proceeding below because the FWF is challenging the constitutionality of Chapter 2011-139. DCA is the state agency charged with enforcing Chapter 2011-139,[8] and DCA is a necessary

[8]In opposition to DCA's motion to be dismissed as a party, the FWF advised the tribunal below that FWF was going to develop a record in the

party to the proceeding below in which Chapter 2011-139 is being implemented. Atwater v. City of Weston, ___So.3d ___ , 2011-WL 1634234 (Fla. 1st DCA May 2, 2011); Haridoplos v. Alachua County, 1st DCA Case No. 1D10-6433, July 7, 2011.

Florida law allows the FWF to raise its constitutional challenges to Chapter 2011-139 in the administrative proceeding below for appeal to the district court for review of the agency action. Key Haven Associated Enterprises, Inc. v. Bd. of Trustees of the Internal Improvement Trust Fund, 427 So.2d 153, 157-58 (Fla. 1982) (district courts of appeal are proper forum to resolve constitutional claims involving that a statute being applied is facially unconstitutional (unconstitutional adoption and unconstitutional delegation of legislative authority), and that an administrative application of a statute is facially unconstitutional (unconstitutional retroactive application denies due process)).

DCA cannot be dismissed as a party in the proceeding below after FWF announced its intentions to develop an administrative proceeding record for the constitutional challenge on appellate review of the final agency decision. Because DCA is the state agency or department charged

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proceeding below of the unconstitutionality of Chapter 2011-139 for appellate review of the application of Chapter 2011-139. (App. 3).

with enforcing Chapter 2011-139, DCA is a necessary party to the proceeding below in which Chapter 2011-139 is being implemented and FWF will be challenging the constitutionality of Chapter 2011-139. Atwater v. City of Weston, ___So.3d ___ , 2011-WL 1634234 (Fla. 1st DCA May 2, 2011); Haridoplos v. Alachua County, 1st DCA Case No. 1D10-6433, July 7, 2011.

**B. FWF's Requested Relief Regarding August 1st Notice**

Because the August 1st Notice declares Chapter 2011-139 will be applied across the broad in the proceeding below, the FWF respectfully requests the court grant expedited review and reverse the August 1st Notice order for each of the following reasons.

**1. Declare (HB 7207) Chapter 2011-139 to Have Been Adopted In Violation of Art. III, Sections 6 & 7, Fla. Const.**

The August 1st notice should be reversed because HB 7207 (Chapter 2011-139, Laws of Florida) unconstitutionally violates both the single subject rule of Art. III, Section 6, and the "passage of bills" mandate of Art. III, Section 7, Fla. Const.

> Art. III, Section 7, of the Fla. Const. reads as follows.
>
> "Any bill may originate in either house and after passage in one may be amended in the other. It shall be read in each house on three separate days, unless this rule is waived by two-thirds vote; provided the publication of its title in the journal of a house shall satisfy the requirement for the first reading in that house. On each reading, it shall be read by title only, unless one-third of the members present desire it read in full. On final passage,

> the vote of each member voting shall be entered on the journal. Passage of a bill shall require a majority vote in each house. Each bill and joint resolution passed in both houses shall be signed by the presiding officers of the respective houses and by the secretary of the senate and the clerk of the house of representatives during the session or as soon as practicable after its adjournment sine die."

The Florida Senate has interpreted and implemented the passage of bill requirements of Art. III, Section 7 of the Fla. Const. regarding what constitutes an amendment of a bill originating in the Florida House of Representatives, by adopting Senate Rule 2.41 which states that:

> "[a] proposal to delete everything after the enacting clause of a bill, or the resolving clause of a resolution, and insert new language of the same general subject matter as stated in the original title shall be deemed proper and germane and shall be treated as an amendment."

In order for action that deletes everything after the enacting clause of a bill to be treated as an amendment, Senate Rule 2.41 requires the insertion of replacement text after the enacting clause. This Senate Rule 2.41 requirement is a reasonable and proper interpretation of what constitutes amendment of a bill originating in the other house in the Florida Legislature. The court should adopt this interpretation as what the first sentence in Art. III, Section 7 of the Fla. Const. means for an amendment of a bill that originated in the other house in the Florida Legislature. Otherwise, the passage of bills reading requirement for notice to the members of Legislature would be rendered meaningless.

HB 7207 was initially passed by the Florida House of Representatives on April 7, 2011 and was properly entitled “trust finds.” The Senate never passed or amended HB 7207 concerning trust funds. Rather, the Senate struck everything but the enabling clause, and no additional language was added to the bill. An enabling clause without a title or any text is not an amendment or even a bill. This Senate action was rejection of HB 7207 in its entirety in accordance with the mandates of Art III, Section 7, Fla. Stat. for passage of bills. It was a violation of Art. III, Section 7, Fla. Const. when the Senate inserted growth management text into the HB 7207 shell of a bill at the end of the 2011 Legislative session.

Chapter 2011-139 (HB 7207) is unconstitutional because it contains more than one subject and was adopted in violation of the single subject rule of Article III, Section 7 of the Fla. Const.

Article III, Section 6 of the Florida Constitution provides, in pertinent part, that “[e]very law shall embrace but one subject and matter properly connected therewith, and the subject shall be briefly expressed in the title.” This portion of the Florida Constitution is referred to as “the single subject rule.”

In Martinez v. Scanlan, 582 So.2d 1167 at 1172 (Fla.1991), the Florida Supreme Court stated:

> "The purpose of this constitutional prohibition against a plurality of subjects in a single legislative act is to prevent "logrolling" where a single enactment becomes a cloak for dissimilar legislation having no necessary or appropriate connection with the subject matter. The act may be as broad as the legislature chooses provided the matters included in the act have a natural or logical connection."

The last title of HB 7207 related to "growth management," a title that encompasses more than a single legislative subject, as illustrated by the appellate court decision in State v. Leavins, 599 So.2d 1326 (Fla. 1st DCA 1992), which held that an statute read and enacted under the title "an act relating to environmental resources" violated the single subject rule because of the range of topics addressed in the forty-eight sections of the bill.

> "This phrase ["an act relating to environmental resources"] is so broad, and potentially encompasses so many topics, that it lends little support to the State's attempt to fend off a single subject challenge. . . Although each individual subject addressed [in chapter 89-175] might be said to bear some relationship to the general topic of environmental resources, such a finding would not, and should not, satisfy the test under Article III, Section 6. If a purpose of the constitutional prohibition [is] to insure, as nearly as possible, that a member of the legislature be able to consider the merit of each subject contained in the act independently of the political influence of the merit of each other topic, the reviewing court must examine each subject in light of the various other matters affected by the act, and not simply compare each isolated subject to the stated topic of the act. (e.s.). Leavin, Supra at 1172."

HB 7207, last entitled “relating to growth management,”[9] addressed more than one subject and is so broad and encompasses too many topics for a “member of the legislature be able to consider the merit of each subject contained in the act independently of the political influence of the merit of each other topic” even if properly noticed and titled. Among other topics of HB 7207 are the following.

A. Repeals Fla.Admin.Code Chapters 9J-5 and 9J-11.023.

B. Amend procedures, standards and criteria for state review of local comprehensive plan amendments, including using vague and undefined terms such as “important state resources and facilities” and “regionally significant resources and facilities” and “regionally significant water courses and wildlife corridors,” and prohibiting DCA from adopting rules to implement these terms.[10]

[9] See App. 5.

[10] Section 8, Chapter 2011-139 creates a new Section 163.3168(4), Fla. Stat. which reads as follows: “(4)The state land planning agency shall provide, on its website, guidance on the submittal and adoption of comprehensive plans, plan amendments, and land development regulations. Such guidance shall not be adopted as a rule and is exempted from s. 120.54(1)(a).”

Section 120.57(1)(e)(1), Fla. Stat. prohibits agencies and ALJs from basing determination affecting the substantial rights of parties on unadopted rules.

C. Prohibits local referendums and initiatives on plan amendments and development orders.

D. Deletes requirements that comprehensive plan, public facilities capitol improvement schedule be financially feasible.

E. Repeals “concurrency” provisions that required local governments maintain adopted levels of service for schools, transportation, and parks and recreation.

F. Amends “proportionate fair share” requirements under which development was required to pay its fair share of the cost to the community of development impacts.

G. Amends the definition of “urban sprawl.”

H. Adopts prohibitions and preemptions regarding “agricultural enclaves.”

I. Adopts procedures regarding “rural agricultural industrial areas.”

J. Removes the requirement for public school facilities element and makes school concurrency optional.

K. Amends the DRI requirements contained in Chapter 380, Fla. Stat.

L. Amends the criteria of need for designation of land use density and intensity.

M. Amends procedures for municipal annexations.

N. Requires unanimous approval of the Administration Commission to impose sanctions.

O. Amends the separate “Florida Local Government Development Agreement Act” (Sections 163.3220-163.3243, Fla. Stat.) allowing development agreements to 30 years, and deleting reporting requirements.

P. Repeals and prohibits executive agency rule making in implementation of the legislature’s statute.

Q. Requires guidance on Department website and exempts guidance from 120.54(1)(a).

R. Repeals provisions regarding Affordable Housing Needs Assessment, Energy Efficiency, and Community Visioning provisions.

S. Amends the administrative hearing standard of review for plan amendments that the DCA finds “not in compliance’ with state requirements, the standard of review in existing small scale amendments proceedings, and the standard of review in the existing review process for plans in urban areas.

T. Amends Section 70.51, Fla. Stat. (Land Use Environmental Dispute Resolution, a.k.a. the Bert Harris Act).

U. Amends the Miami River Commission powers and duties.

V. Amends the Century Commission for Sustainable Florida.

W. Creates new Rural Land Stewardship Areas; and

X. Extends expiration dates on existing DEP and WMD permits and approvals (Chapter 373, Part IV, Fla. Stat.).

The court must examine each subject of a bill in light of the various other matters affected the bill, and not simply examination to the stated topic of the act.

HB 7207 contains 81 sections, some of which do not even appear in the 6 page title section of the bill. HB 7207 did not insure that a member of the legislature be able to consider the merit of each subject contained in

the act independently of the political influence of the merit of each other topic. For example, a legislator may wish to vote for certain subject contained in the Bill but against other subjects, making a vote on each individual subject contained in the HB 7207 impossible. Even more confusing was the failure to properly notice and read by title the actual subject matters of HB 7207. Instead it was read as an unrelated subject of "trusts funds."

**2. Declare Chapter 2011-139 an Unlawful Delegation of Legislative Authority in violation of Art. II, Section 3**

The August 1st Notice in the proceeding below puts at issue the constitutionality of Chapter 2011-139.[11] The FWF contends Chapter 2011-139 unlawfully delegates legislative authority to DCA the duty to implement the unconstitutionally vague phrases: "important state resources and facilities," "regionally significant resources," "regionally significant water resources and wildlife corridors," and "regional resources and facilities." Chapter 2011-139 not only unlawful delegates legislative authority to DCA, Chapter 2011-139 also repeals DCA's specific rule making authority in

[11] In addition to the adverse impacts of this unlawful delegation of legislative authority on FWF in the proceeding below, FWF is also adversely affected by the unlawful delegation of legislative authority causing DCA to be unable to implement the new Growth Management Act, a result which is very adverse to the FWF given the Chapter 2011-139 repeal of most of the 2010 Growth Management Act provisions that protect and conserve important state natural resources by state comprehensive land use planning.

Section 163.3184(9) & (10), Fla. Stat. (2010),[12] and it enacted new Section 163.3184(4), Fla. Stat (2011) that prohibits DCA from adopting rules to implement Chapter 2011-139. These actions eliminated DCA's rule making authority, a situation that is further made illegal by existing Section 120.57(1)(e)(1), Fla. Stat. (2011) that prohibits agencies and ALJs from basing decisions on unadopted rules. Expedited review is needed to determine whether Chapter 2011-139 unlawfully delegates vague legislative authority.

Article II, Section 3 of the Florida Constitution, the non-delegation doctrine, reads as follows states:

> "Section 3. Branches of Government.– The powers of the state government shall be divided into legislative, executive and judicial branches. No person belonging to one branch shall exercise any powers appertaining to either of the other branches unless expressly provided herein."

In the case of Florida Department of State, Division of Elections v. Martin, 916 So.2d 763, 769 (Fla. 2005), the Florida Supreme Court discusses the unlawful delegation of legislative law in Florida.

> "This Court has traditionally applied a "strict separation of powers doctrine," State v. Cotton, 769 So.2d 345, 353 (Fla.2000), which "encompasses two fundamental prohibitions." Chiles v. Children A, B, C, D, E, & F, 589 So.2d 260, 264 (Fla.1991). "The first is that no branch may encroach upon the powers of another. The second is that no branch may delegate

[12]Section 120.536, Fla. Stat. requires specific statutory authority for agencies to adopt rules.

to another branch its constitutionally assigned power." (citation omitted). In Bush v. Schiavo, 885 So.2d 321 (Fla.2004), cert. denied, ___ U.S. ___, 125 S.Ct. 1086, 160 L.Ed.2d 1069 (2005), we recently addressed this second prohibition and explained:

The Legislature is permitted to transfer subordinate functions "to permit administration of legislative policy by an agency with the expertise and flexibility to deal with complex and fluid conditions." Microtel, Inc. v. Fla. Public Serv. Comm'n, 464 So.2d 1189, 1191 (Fla.1985). However, under article II, section 3 of the constitution the Legislature "may not delegate the power to enact a law or the right to exercise unrestricted discretion in applying the law." Sims v. State, 754 So.2d 657, 668 (Fla.2000). This prohibition, known as the non-delegation doctrine, requires that "fundamental and primary policy decisions . . . be made by members of the legislature who are elected to perform those tasks, and [that the] administration of legislative programs must be pursuant to some minimal standards and guidelines ascertainable by reference to the enactment establishing the program." Askew v. Cross Key Waterways, 372 So.2d 913,925 (Fla.1978)... In other words, statutes granting power to the executive branch "must clearly announce adequate standards to guide . . . in the execution of the powers delegated. The statute must so clearly define the power delegated that the [executive] is precluded from acting through whim, showing favoritism, or exercising unbridled discretion." Lewis v. Bank of Pasco County, 346 So.2d 53, 55-56 (Fla.1976)....

The requirement that the Legislature delineate adequate standards enables courts to perform their constitutional duties. The failure to set forth adequate standards precludes a court from determining whether the executive branch is acting in accord with the Legislature's intent. See, Askew, 372 So.2d at 918-19 ("When legislation is so lacking in guidelines that neither the agency nor the courts can determine whether the agency is carrying out the intent of the legislature in its conduct, then, in fact, the agency becomes the lawgiver rather than the administrator of the law.")."

The Florida Supreme Court has in several decisions ruled unconstitutional laws that delegated legislative authority with insufficient standards guiding the exercise of this authority by the executive branch. In Lewis, the Florida Supreme Court held that a statute allowing bank or trust company records to be made public upon the consent of the Comptroller, as head of the Department of Banking and Finance, constituted an unconstitutional delegation of legislative authority in violation of Article II, Section 3. Lewis, Supra at 55. In holding Section 658.10(1) unconstitutional, the Court approved the reasoning of the circuit court judge who found that "[t]here are no restrictions, limitations, or guidelines provided in the statute to limit or regulate the action of the department in granting . . . [or] withholding consent." Id. at 55.

In Orr v. Trask, 464 So.2d 131 (Fla.1985), the Court concluded that a proviso authorizing the Governor to reduce the number of deputy commissioner positions violated Article II, Section 3. The Court determined that the proviso was unconstitutional because it "furnished no guidance to the Governor as to the criteria to be used in reducing the number of deputies," but rather, left the selection of which deputies should be eliminated "entirely to the unbridled discretion of the executive branch." Id. at 134.

In Bush v. Schiavo, 885 So.2d 321 (Fla.2004), the Florida Supreme Court held that Chapter 2003-418, Laws of Florida, was an unconstitutional delegation of legislative authority in violation of Article II, Section 3. See, Schivo, 885 So.2d at 336. In holding Chapter 2003-418 was unconstitutional, the Court explained that chapter 2003-418 failed to provide any standards by which the Governor could decide whether to issue a stay and how long a stay should remain in effect. See id., at 334. The Court stated that "[t]his absolute, unfettered discretion to decide whether to issue and when to lift a stay makes the Governor's decision virtually unreviewable." Id.

HB 7207 uses the vague and undefined phrases "important state resources and facilities," "important regional resources and facilities," "regionally significant natural resources," "regionally significant water courses and wildlife corridors," and "regionally resources and facilities" in the following fundamental portions of the new act.

A. The phrase "important state resources and facilities" is used in the new Section 163.3161(3), Fla. Stat., namely the intent to "focus the state role in managing growth under this act to protecting the functions of

important state resources and functions."[13]

B. The new Section 163.3164(3), Fla. Stat. directs DCA "to provide direct and indirect technical assistance to local governments if plan amendments may adversely affect important state resources or facilities." Without more statutory definition this language cannot legally be implemented by DCA.

C. The new Section 163.3184(3), Fla. Stat. provides that state agencies may only comment upon "important state resources and facilities" when commenting upon plan amendments. FWF contends this statutory limitation on state agency comments without defining the phrase "important state resources and facilities," especially with the Chapter 2011-139 prohibition on the state land planning agency adopting rules defining the phrases, makes this delegation of legislative authority unconstitutional in violation of Art. II, Section 3, and Art. II, Section 7 of the Fla. Const.

D. The new Section 163.3184(4), Fla. Stat. which limits the state land planning agency to objections, recommendations, and comments (ORC) in its report regarding a plan amendment only if the plan amendment "will

[13]FWF contends one of the most important state resources is the endangered Florida panther and its habitat in the pending case below concerning southeast Lee County.

adversely affect important state resources and facilities." This vague undefined phrase prohibits the state land planning agency from commenting in its ORC on plan amendment which improve and provide needed new protection to important state resources and facilities as do the Lee County plan amendments in the pending proceeding below.

E. The new Section 163.3184(5)(b), Fla. Stat. which allows the state land planning agency to file a petition with DOAH only after a state land planning agency determination that an "important state resource or facility" will be adversely affected by the adopted plan amendment.

F. The new Section 163.3184(5)(c)(3), Fla. Stat. attempts to establish a new standard of proof in DCA initiated proceedings involving "important state resources and facilities." However, without more statutory definition of the phrase, the standard of proof cannot be implemented by ALJs because Section 120.57(1)(e)(1), Fla. Stat. prohibits reliance on unadopted rules.

G. The new Section 163.3245, Fla. Stat. concerning "Optional Sector plans" uses the vague and undefined phrases "regionally significant resources," regionally significant water courses and wildlife corridors," and "regionally regional resources and facilities" which sector plans must

protect. Without definition of these phrases sector plans cannot be implemented.

H. The new Section 163.3245(3)(a), Fla. Stat. concerning the long term master plans of sector plans uses the phrases “regionally significant natural resources” and “other important resources both within and outside the host jurisdiction” as what needs to be identified and protected by specific measures through recorded conservation easements. Without definitions of these phrases the identification and protection activities can not be performed.

Application of Chapter 2011-139 to the proceeding below places the proceeding below in gridlock. DCA can not decide whether to provide Lee County with technical assistance, and DCA and other state agencies can not perform the reviews required by the new Chapter 163, Part II, Fla. Stat.

**3. Declare Chapter 2011-139 Unconstitutionally Results In Inadequate Laws To Conserve and Protect Florida’s Natural Resources as required by Art. II, Section 7, of the Fla. Const.**

HB 7207 unconstitutionally delegates vague legislative authority to the DCA concerning “important state resources and facilities,” and “important regional resources and facilities” in violation of Article II, Section 3 of the Fla. Stat. HB 7207 not only does not define these terms, and HB 7207 also prohibits DCA from having the statutory authority to adopt rules

to implement these phrases. In light of the prohibition in Section 120.57(1)(e)(1), Fla. Stat on agencies and ALJs determining substantial interests of parties based upon unadopted rules, HB 7207 unconstitutionally violates Art. II, Section 7 of the Fla. Const. which mandates that "[a]dequate provision shall be made by law for the abatement of air and water pollution....and for the conservation and protection of natural resources."

At a minimum state statutes must provide adequate provision to abate air and water and to conserve and protect the natural resources of the State of Florida by enacting adequate comprehensive land use laws.[14] The Chapter 163, Part II, Fla. Stat. Growth Management Act laws revised by Chapter 2011-139 are not adequate because they do not define "important state resources and facilities" or "regionally significant natural resources," and "regionally significant water courses and wildlife corridors." Without definitions and rule making authority to implement Chapter 2011-139, there are not adequate provision by law to abate air and water and to conserve and protect the natural resources of the State of Florida as mandated by Art. II, Section, 7, Fla. Const.

[14]Land use laws are comprehensive planning laws, laws that are substantially different than project by project regulatory permitting based laws such as Chapters 373 and 403, Fla. Stat.

## VI. CONCLUSION

The court should: a) grant the FWF's petition for expedited review of the two non-final orders of ALJ Canter, b) issue an order to the Respondents in this petition to show cause why the FWF's petition should not be granted by entering an order reversing ALJ's dismissal of DCA as a part to the proceeding below, c) declare HB 7207 (Chapter 2011-139) to be an unconstitutional for the reasons set forth above, and d) grant any other relief to the FWF the Court deems appropriate.

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## CERTIFICATE OF SERVICE

I certify that a correct copy of this document was furnished by electronic mail to following individual this 10th day of August, 2011.

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## CERTIFICATE OF COMPLIANCE

Counsel certifies that this petition meets the typeface and length requirements of Rule 9.045 and Rule 9.100(g) governing this court. The petition is set in Arial 14-point type. Excluding the cover, the tables, the certificates and the signature block, it contains 7612 words, as counted by the word-processing system that prepared it.

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